

BETWEEN:

Plaintiffs

Defendant

Bruno Roti, for the Defendant

REASONS FOR JUDGMENT

Nature of the Action

[1] Diane Goody claims non-pecuniary or general damages, special damages and pre-judgment interest as a result of a fall she sustained on Sunday, January 26, 2003 at the premises of the Defendant. She is married to

the Plaintiff Richard Goody who claims under the *Family Law Act*, R.S.O. 1990, c.F.3.

[2] The Defendant, Costco Wholesale Corporation Limited, is a corporation incorporated in Ontario and operates a wholesale retail grocery business at its premises in London, Ontario.

Positions of the Parties

[3] Mrs. Goody fell in the entrance of the Costco store. The claim is under s. 3 of the *Occupiers' Liability Act*, R.S.O. 1990, c.O.2. The Plaintiffs claim the Defendant breached the statutory duty of care as a result of a faulty grate in its entrance way.

[4] It is the position of the Defendant that there were no hazards in the entrance or created by the grate system in the floor of the entrance. The Defendant submits it took reasonable care in the situation. The Defendant takes the position that the *Act* does not absolve a visitor of a duty to take reasonable care. The Defendant submits that given the weather there was a duty of care upon the Plaintiffs as they entered their premises.

[5] The Defendant denies negligence and submits that the mere fact that an incident occurred does not give rise to liability or the Plaintiffs' entitlement to damages.

Issues to Be Decided

- [6] The issues to be decided are:
- (a) liability;
 - (b) the assessment of non-pecuniary damages;
 - (c) special damages, specifically, past and future income loss; and
 - (d) the *Family Law Act* claim.

Background

[7] The Plaintiff, Diane Goody is a retired property assessor. On the date of the incident she was 53 years of age.

[8] Mrs. Goody fell as she entered the Costco store. She was accompanied by her husband, Richard Goody. They were on their way home to Orangeville, Ontario from Wallaceburg, Ontario, where they were visiting Mrs. Goody's mother the day of the incident.

[9] The Goody's stopped at the London, Ontario store on that day and as was their habit, one or two times a month on return from their visit. The stop allowed them a break and an occasion to do some shopping in the store.

[10] On that particular day, it had been snowing, and snow had accumulated on the ground. They walked from their car through two sets of sliding doors and over a set of metal grates in the entrance way.

[11] Both parties were dressed for winter, wearing coats and winter boots. Mrs. Goody was wearing her glasses at the time. Mrs. Goody entered the store slightly ahead of her husband. She had her membership card in her pocket and was not carrying a purse or anything else.

[12] In walking over the grates, Mrs. Goody fell forward. Mr. Goody was behind her. She was able to get up and then was seated.

[13] A Costco employee completed an incident report which Mrs. Goody signed and dated. When Mr. and Mrs. Goody arrived in Orangeville, Mrs. Goody attended at the Headwaters Health Centre where she was examined.

[14] Subsequently Mrs. Goody consulted with a number of physicians and health care workers regarding her condition. She also submitted to a Defence medical examination.

Analysis

(a) Liability

[15] In this case s. 3(1) of the *Occupiers' Liability Act* establishes the standard of care by occupiers. It reads:

An occupier of premises owes a duty to take such care as in all the circumstances of the case is reasonable to see that persons entering on the premises, and the property brought on the premises by those persons are reasonably safe while on the premises.

[16] Section 3(2) of the *Act* provides:

The duty of care provided for in subsection (1) applies whether the danger is caused by the condition of the premises or by an activity carried on on the premises.

[17] As stressed by both counsel in their submissions, the standard imposed upon Costco is one of reasonableness. Costco is required to take steps to render its store and premises reasonably safe. It requires neither perfection nor unrealistic or impractical precautions against known risks. (See *Kerr v. Loblaws Inc.*, 2007 ONCA 371, 224 O.A.C. 56.

[18] The issue on the question of liability is whether the steps taken by Costco were sufficient to discharge the burden placed on it by the *Act*.

[19] I was referred to and followed the principles set out in the decision of *Crudo v. Westfair Foods Ltd.*, 2005 BCSC 320, B.C.J. No. 457.

[20] The application of the standard is a fact-specific exercise based on all the evidence heard and admitted at this trial. The standard is set out by the

Supreme Court of Canada in *Waldick v. Malcolm*, [1991] 2 S.C.R. 456, at p. 472.

[21] It was referred to in the Court of Appeal decision in *Kerr*, at para. 24.

[22] In *Chan v. Erin Mills Town Centre Corp.*, [2005] O.J. 5027 (S.C.J.) at para. 42, Lax J. makes the following comment that “as circumstances vary from case to case, so do the requirements of meeting the statutory standard [under s. 3(1) of the Act]”. The finding of facts is therefore important to the issue of liability.

[23] It is, therefore, for this court to determine the existence of a duty relationship and to lay down in general terms the standard of care by which to measure the Defendant’s conduct. I must then decide whether that standard has been met in the circumstance of the case. (See John G. Fleming, *The Law of Torts*, 8th ed. (Sydney: Law Book Company, 1992), at p. 106).

[24] I agree with the Defendant that the fact that Mrs. Goody fell does not in itself give rise to liability. Central to the issue of liability is whether Costco’s obligation to its customers, and specifically, Mrs. Goody, has been fulfilled. The burden of proof, on a balance of probabilities, is on the Plaintiff. I cannot look to

the incident and injury and then say it was foreseeable merely because it happened.

[25] While Costco does not deny that Mrs. Goody fell, it denies that she tripped as a result of any want of care or breach of duty on the part of Costco. It is the position of Costco that its premises and specifically the grate at the entrance, were in a good state of maintenance and repair at the time of the accident.

[26] In *Marche v. Empire Co.*, 2001 NSCA 59, 193 N.S.R. (2d) 132, at paras. 30-31, the Court of Appeal commented:

Case law provides valuable assistance to a judge in determining whether the standard of care has been met. However, as is apparent from the jurisprudence, what is required to meet the reasonableness standard will vary from case to case. What meets the reasonableness standard in one situation may fall short in another.

The appellants urge that the fact of this case are close to, if not virtually identical with, those in cases it relied upon where the standard of care was found to have been met. There may be strong correlations with the facts in other cases, but not surprisingly, there are often noteworthy differences.

[27] In this trial, Craig Bowden, the assistant store manager, testified that the store followed housekeeping practices and maintained a routine floor inspection. With respect to this area of the store, it is the position of Costco that if there was any unevenness where the grate meets the cement floor, which it denies, it was of such minor nature that it did not cause Mrs. Goody's fall. Mr. Bowden testified that on the day of the accident, some 1,631 customers entered

the store without any incident or problem. He also testified that in the 21 weeks before the accident, some 347,495 customers entered through the entrance, over the grates and without incident. Mr. Bowden who was employed at that location since 1990 was not aware of any other person falling or tripping over the grate system that was in place.

[28] Mrs. Goody testified that she tripped over the grates while walking over them. Her evidence was that her left foot stopped in the walking motion and she landed forward from the area of the grates. While on the ground, she was able to sit up and in so doing, she observed that the far edge of the grates would move up with the weight of a person stepping on the opposite side.

[29] Her husband Mr. Goody testified that he was walking behind her. He observed a couple in front of him and his wife. He said he saw the grate move at least 1/2 an inch downward as the couple who were on it sank downward.

[30] The Defence points to the contradiction between the evidence of Mr. and Mrs. Goody in that Mrs. Goody said there was one person in front of them. Mr. Goody clearly said there were two people. He described them in detail as wearing hats, long coats and boots. From his evidence, I find he clearly noted two people while Mrs. Goody did not.

[31] I looked very carefully at the evidence of Mr. and Mrs. Goody and the fact that they are not independent in this action. However, as they testified I found them both to be very honest and forthright so that I could not say they were lying. It was clear that they discussed the event but the difference in their recollection and their testimony assisted me in my determination that they were both credible witnesses.

[32] There is nothing in the way the Plaintiffs were dressed including their footwear or the way they walked or approached the entrance that was significant or noteworthy.

[33] It was submitted by the Plaintiffs and I find that the grates did not appear to have been checked for a number of years. I was referred to the fact that when the grate was raised, there was debris under the grate which had accumulated over several years. I accept that the Plaintiffs' own witness, Jeff Archbold, testified that this particular grating system was such that it could be unattended for a year. Here I find that the inspection system in place at the store on that day was not satisfactory. No one checked this particular area and more specifically the grates at the entrance just before the incident.

[34] Mr. Bowden testified that the protocol in place is that there is a floor check required every hour and that the inspection is recorded in a "floorwalk

checklist". The person who was required to do a check of the entrance and foot walk area missed doing so at 12:00 p.m. and 1:00 p.m. Costco; therefore, failed to do at least two checks just before Mrs. Goody's fall. The Costco Incident Report, dated January 26, 2003 at 2:05 p.m., sets out that the incident occurred at 1:45 p.m. That would support the Plaintiffs' position, which I accept, that the entrance area had not been checked by Costco for at least 2 hours and 45 minutes before the fall.

[35] In the Costco Incident Report, completed in the hand of a Costco employee, the description of the incident is as follows: "grate rose at the back due to weight on front of grate, member tripped on raised edge". In Mrs. Goody's own hand, she indicated she intended to seek medical treatment for her injuries at the "Headwaters Health Centre Orangeville". She did just that.

[36] Mr. Bowden testified that after the incident, he and another employee conducted an inspection and a re-enactment as to the stability of the grates in the entrance. He found them to be stable and sound. While I accept that Mr. Bowden conducted the experiment, I find that the test was neither convincing nor scientific. Neither he nor the other employee spoke to the Goodys before conducting the re-enactment. As a result, the reliability of the re-enactment is questionable.

[37] While the Defendant argued that the grate system did not require any maintenance, what was more persuasive is that following the incident and his own inspection, Mr. Bowden had the grate system covered with rubberized carpeting so that they would pose no hazard. A few months thereafter the entire system was removed in the renovation of the store. The grates in issue were not preserved and were apparently destroyed by the Defendant or their agents after removal. When the Plaintiffs asked for them they were not available for inspection.

[38] It is submitted by the Plaintiffs that I draw an adverse inference from the fact that no other employees of Costco were called to support the evidence of Mr. Bowden with respect to the state of the grates. Similarly it was submitted that I draw an adverse inference from the fact that the grates were not available for forensic examination by the Plaintiffs. I agree with the Plaintiffs' submissions.

[39] The Plaintiff, Mrs. Goody, discarded the boots she was wearing that day. While I am asked to also find adversely against her, I could not find that the boots were ever requested by the Defendant or that Mrs. Goody was told to keep them.

[40] The Plaintiff relies on the evidence of Mr. Archbold of Walters Forensic Engineering Inc. with respect to the mechanics of the grating system. He was vigorously cross-examined by the Defence. It is the position of the Defence that Mrs. Goody may have been rushing into the store. In cross-examination Mr. Archbold did say that a person walking fast could have more difficulty in “catching themselves” to prevent the fall. The evidence did not support that Mrs. Goody was walking fast. There was evidence, however, to support that while she was walking normally, she does walk with a slight gait.

[41] The Plaintiffs take the position that because the grates were destroyed, the best evidence we have are the photographs. The Plaintiffs rely on them for the proposition that the grates were concave. The Defence also relies on the same photographs to support its position that the grates were not concave or damaged to the extent that they could cause this accident.

[42] When the photographs of the entrance area were taken by an insurance adjuster some three months later, the mats covering the grates which were put there the day of the incident, were still in place. The evidence of Mr. Archbold was that the mats show creases and folds which could be consistent with the rocking or movement of the grates as described by the Goody's. While that evidence was speculative, I find the fact that the mats were still in place some

three months later, very telling. There must have been a reason for the grates to remain covered with mats for several months after the incident. Normally they were exposed.

[43] In the end, without the physical evidence of the grates, the explanation of the raised edge of the grate has, I find, been established through the evidence of Mr. Archbold. Based on the version of events by the Plaintiffs and the photographs, Mr. Archbold was of the opinion that the grates created a tripping hazard for a non-injured individual if the rise of the grate was more than $\frac{1}{4}$ of an inch to $\frac{1}{2}$ inch. He opined that a person who suffered a limp or other gait irregularity could be tripped by a rise less than $\frac{1}{2}$ inch and as low as three-sixteenths of an inch.

[44] With respect to Mr. Archbold's evidence, the Defendant argued that in an interview with Dr. Bull, Mrs. Goody reported a rise of "about $\frac{1}{4}$ of an inch". At her examination for discovery, a few months later, the Defence points out that Mrs. Goody's estimate of the rise of the grate increased to a $\frac{1}{2}$ inch. At the trial Mrs. Goody testified that the rise was "at least" a $\frac{1}{2}$ inch. In providing his opinion, Mr. Archbold said he relied on an elevation of $\frac{1}{2}$ inch rather than the $\frac{1}{4}$ inch originally estimated by Mrs. Goody. In the end he concluded that even if the elevation was less than $\frac{1}{2}$ inch, it still could have caused Mrs. Goody to trip.

[45] Given these inconsistencies, the Defence therefore put in issue the Goody's' credibility on the issue as to what caused Mrs. Goody's fall. It is argued that the change in Mrs. Goody's estimate from her earlier statement and her testimony at this trial should lead me to doubt that the grate caused her to fall. The Defence also argues that in his report, Mr. Archbold relied on the ½ inch measurement for his opinion because it is more favourable to the Plaintiffs' case.

[46] I find that it would have been impossible for either Mr. or Mrs. Goody to measure to a nicety the elevation of the grate that Mrs. Goody said caused her to trip. Mr. Goody at trial said that the grate moved between ½ an inch to a full inch. I find that like his wife, neither of them were concentrating on the extent of the rise nor should anyone expect either of them to be accurate or precise. It was clear that after the accident, they did not inspect the grates and the extent of their movement, nor were they invited to do so by Costco.

[47] It is submitted by the Defence that the evidence of Mr. Archbold is flawed in that he chose to use the ½ inch measurement for the elevation of the grate from its recess in the floor. The Defence argues that he chose to rely on the greater estimate because all the literature and authority he cited concludes that a ¼ inch measurement would not create a tripping hazard. It is also

submitted that Mr. Archbold did not pay attention to the contradictions in the evidence of Mr. and Mrs. Goody as to the difference in height. He was honest when he said he was not aware of the inconsistency. I find that it was not Mr. Archbold's role to weigh the credibility of the Plaintiffs.

[48] I find that Mr. Archbold did the best that he could with what he had and what he was told. He gave evidence with respect to the variation of heights and when and how a tripping hazard is created. That was his role as an expert. He also confirmed that even if the rise was less than $\frac{1}{2}$ inch, it could present a hazard for a person with some instability or an irregular gait. I find that given her earlier physical problems, even if Mr. Archbold was wrong in using the $\frac{1}{2}$ inch estimate for the elevation, Mrs. Goody fits into that category of "instability" because of her gait, therefore increasing the likelihood of this being hazardous for her even if the elevation was $\frac{1}{4}$ inch or more.

[49] Mr. Archbold's opinion is, I find, reliable in the circumstances. What was troubling for me is that Costco involved an adjuster in early February 2003 with respect to this claim. An adjuster was on site in May 2003 and he took photographs of the grate system upon which Mr. Archbold relied. Yet, knowing the litigation was in place and that the grates or this very issue would be relevant to the action, no steps were taken to preserve the grates. The Plaintiffs

submit I draw an adverse inference. On this point I was referred to *Cheung v. Toyota Canada Inc.*, [2003] O.J. No 411 and *Coriale (Litigation Guardian of) v. Sisters of St. Joseph of Sault Ste. Marie* (1998), 41 O.R. (3d) 347.

[50] Mindful of the adverse inferences which the Plaintiffs wish me to find, I rely on the evidence of Mr. and Mrs. Goody, which I accept, that the movement of the grates was such that no matter what the elevation, it caused the tripping. I also am satisfied that Mr. Archbold did his best with what he had to convince me that the movement of the grates could have caused the hazard. He did testify that a visual inspection and his observation of the grate would have answered the questions of defect and causation. Unfortunately neither the grate nor the site was available to him when he was retained.

[51] While Costco argues it neither knew, nor ought to have known that the grates caused a tripping hazard, I do not agree. I find there was a failure by Costco on that day to properly and thoroughly inspect the grate area both before and after the incident.

[52] In the end, I accept the evidence of Mrs. Goody that there was something about the grates which caused her to trip.

[53] The evidence of Mrs. Goody and her description of the way she fell established for me that she tripped and that she tripped as a result of the movement of the grate in the floor of the Costco entrance.

[54] While there was no previous evidence of any problem in the entrance, and, specifically of the grates, I find that the difficulty here arises from the failure by Costco to inspect the grates pursuant to their in-store protocol. Clearly, this was not an unrealistic or impractical precaution for Costco to take. I find the grate created a risk which caused a hazard.

[55] After considering the totality of the circumstances and applying the law, I find that the condition of the grate was such that it created a hazard and that the Defendant failed to make the entrance reasonably safe. That hazard caused Mrs. Goody to trip. I therefore find the Defendant breached the duty of care owed to Mrs. Goody under s. 3(1) of the Act.

(b) Causation

[56] As set out in *Athey v. Leonati*, [1996] 3 S.C.R. 458, the general principle is that causation is established where the plaintiff proves to the civil standard

that the defendant caused or contributed to the injury. See also *Snell v. Farrell*, [1990] 2 S.C.R. 311.

[57] The general, but not conclusive test for causation, as set out in *Athey*, is that the plaintiff is required to show that the injury sustained would not have occurred “but for” the negligence of the defendant. The causation test is not to be applied too rigidly. Causation need not be determined with scientific precision. As stated in *Alphacell Ltd. v. Woodward*, [1972] 2 All E.R. 475 and quoted in *Snell*, at p. 328, it is “essentially a practical question of fact which can best be answered by ordinary common sense”.

[58] I accept the evidence of Mr. and Mrs. Goody that Mrs. Goody tripped on the floor grate, together with the evidence of Mr. Archbold with respect to the concave deformation of the grate. I am also satisfied that there was nothing in the conduct of Mrs. Goody that caused her to trip.

[59] In the end, based on the evidence of Mrs. Goody, which I accept, she tripped and fell. On the balance of probabilities I am satisfied there was a defect in the grate at the entrance of the Costco store which caused the Plaintiff to trip.

[60] It is the position of the Defence that Mrs. Goody has a medical history and that her medical condition which pre-dates the fall, caused her to trip in the Costco store. It is the position of the Defence that the fall is related to her own circumstances and condition at that time.

[61] The Defence relies on the fact that Mrs. Goody had major reconstructive surgery on her right knee in the early 1990s and that she suffered from chondromalacia in both knees from as early as 1992.

[62] Given her medical history and condition at the time of the trial, the Defence submits that if any of Mrs. Goody's symptoms at trial flow from the fall at Costco they are minimal. The Defence relies on the "crumbling skull" theory and submits that as a result, the Defendant should not be obliged to put her in a better position better than on the date of the fall. I agree with the Defence that the Defendant should only be liable for the injuries caused as a result of the fall. The Defendant is not obligated to compensate the Plaintiff for any pre-existing condition which the Plaintiff would have experienced anyway. I will bear that in mind in my assessment of damages.

(c) Duty and Standard of Care

[63] Under s. 3 of the *Occupiers' Liability Act*, the Defendant, as the occupier, owes a duty of care to maintain premises that are reasonably safe. The duty of care applies whether the danger is caused by the condition of the premises or by an activity carried on on the premises.

[64] I was referred to the interpretation of this section by the Supreme Court in *Waldick*, at p. 472:

[T]he statutory duty on occupiers is framed quite generally, as indeed it must be. That duty is to take reasonable care in circumstances to make the premises safe. That duty does not change but the factors which are relevant to an assessment of what constitutes reasonable care will necessarily be very specific to each fact situation – thus the proviso “such care as in all circumstances of the case is reasonable”.

[65] Costco argues that hundreds of its members/customers walked over this area without incident. As in the case before me, in *Cox (Litigation Guardian of) v. Marchen*, [2002] O.J. 3669 (S.C.), the Defendants were not aware of prior incidents at their entrance.

[66] I accept the evidence of Mr. Archbold that from the photographs (which are all we now have) there was some dishing and convexity in the grates at the entrance of the Costco store that created a hazard. While the grates apparently did not pose any problem before this event, I find the Defendant nevertheless liable for this occurrence. At para 40 of *Cox*, the court states:

There was no evidence of when the door became a hazard but on June 14, 1999, it was indeed a hazard for [the Plaintiff] and the Defendants are liable.

[67] I come to the same conclusion as did the court in *Cox* that the condition of the grate system created a danger for the persons using it and that Costco failed to make the entrance reasonably safe. In *Cox*, the court concluded at para. 45 as follows:

[The] Defendants just did not think about whether the door by its condition and use presented a risk. This does not relieve them of their obligations at law. Mr. Marchen failed to adequately inspect the door, assess its condition, connect the condition to risk of potential serious harm and take reasonable steps to protect students.

[68] I therefore do not accept that Costco did not know or did not have to know of the risk of injury presented by the bent grate. I find that the Defendant's failure to inspect the entrance constitutes a breach of the statutory standard of care pursuant to s. 2 of the *Occupiers' Liability Act*.

[69] On the facts before me, I am faced with two possible scenarios to explain Mrs. Goody's fall. Either she stumbled on her own or she tripped as a result of the differential elevation of the grate from the floor. I do not find that she tripped on her own or as a result of her own circumstances, conduct or condition, including the condition of her footwear. It simply was not proven.

[70] While I accept the position of the Defence that there was no evidence of previous problems with this entrance, or the grate, it does not necessarily follow

that the entrance was reasonably safe at the time Mrs. Goody passed through it, especially given the missed floor checks.

[71] In conclusion, on the issue of liability and on the balance of probabilities, I find there was a flaw in the grate which constituted a breach of the Defendant's standard of care. It caused Mrs. Goody's fall. As a result, and on the evidence which I accept, I make a finding of negligence against Costco.

Damages

(a) The Injuries

[72] Mrs. Goody claims that she suffered debilitating injuries as a result of the fall at Costco. She claims that her physical condition is serious and permanent. She claims she incurred medical expenses for all the medical attention she received as a result of the accident.

[73] Following the accident, Mrs. Goody attended immediately at the Headwaters Health Centre. She was examined and given pain medication. Two or three days later she saw her family doctor, Dr. James Wylie.

[74] According to her evidence she had pain in both knees. The right knee had greater pain in the beginning and then the left knee became sore. The left knee continues to be the worst knee now.

[75] Following the accident Mrs. Goody spent the first few days on the sofa and eventually went back to work as she was then self-employed in a new job.

[76] The family doctor started her on physiotherapy with Donna Arsenault in Orangeville following the accident. Ms. Arsenault testified at the trial regarding the therapy she provided two weeks following the injury. At therapy addressed a diagnosis of traumatic patella-femoral syndrome. As expressed by Mrs. Goody in her testimony, Ms. Arsenault noted that Mrs. Goody had pain in both knees and complained of burning and throbbing at the end of the day.

[77] The medical nature of the injury which Mrs. Goody suffered and her post-event condition is discussed below.

(b) Pre-incident Medical History of the Plaintiff

[78] The Defendant disputed that the accident caused Mrs. Goody's medical problems. The evidence was clear that before the accident, Mrs. Goody had medical problems, specifically with her knee. In fact, on January 18, 2003, just prior to the accident, she visited her family doctor. His notes indicated, "injured knee, right, one month ago OE tender, right MCL lig, slight swelling".

[79] In November 2001 she was referred by her physician to Dr. C. B. Paitich, an orthopaedic and re-constructive surgeon, because she was having

physical problems. She had pain when sitting and then complained of discomfort in the region of her os coccyx (tailbone). She was treated by Dr. Paitich with anti-inflammatory medication and he prescribed seating modification.

[80] Also before the accident, in October 1992, her family doctor referred her to Dr. Charles Bull (whom she also later consulted in 2003 following the fall) regarding the problem she was having with an operative repair of her anterior cruciate ligament done in May 1992. Dr. Blue is an orthopaedic and reconstructive surgeon with a speciality in knee injuries. In October 1992, Dr. Bull advised her with respect to her medical progress, rehabilitation and the need for a CTI brace.

[81] About two years before the accident Mrs. Goody saw Dr. Kim Gillies, a chiropractor, who treated her for alignment of the back because she was not sleeping. While Mrs. Goody's evidence was that she did not have any back pain before the accident, she was obviously wrong on this point. I do accept her evidence that just before the accident, she was not seeing Dr. Gillies on a regular basis. Her visits to the chiropractor were sporadic, every three months or so, as her condition was much improved. However, following the accident Mrs. Goody testified her condition was such that she went to Dr. Gillies every

week. As time progressed she reduced her visits to the chiropractor to once every four weeks.

[82] One of the doctors she saw commented on her pre-accident condition. In his report of October 7, 2003 Dr. John Harrington, also an orthopaedic and re-constructive surgeon said, "She [Mrs. Goody] has an element of instability, which is pre-existing on the right side. She had previously injured the right knee and had an ACL reconstruction on that side". In his testimony at this trial Dr. Bull referred to Dr. Harrington's report and he too acknowledged her pre-accident condition.

[83] Prior to the fall at the Costco store, Mrs. Goody testified that she did have a skiing accident which required repair to her right knee (ACL).

[84] Mrs. Goody testified candidly that prior to the fall at Costco she suffered certain physical limitations. For example, she was unable to kneel on her right knee and suffered episodic right knee pain, as she told the expert retained by the Defence, Dr. Marvin Tile. She testified that she had some restrictions in walking long distances but was still able to take long casual walks before the incident at Costco.

[85] Mrs. Goody was very forthright about her pre-accident condition. I accept her evidence that notwithstanding her pre-fall physical circumstances and symptomology, her daily life, her routine and her employment and leisure activities were only mildly impacted by the ACL injury, its repair and her other health problems.

[86] As a result, I cannot but conclude that at the time of the accident, Mrs. Goody did have physical problems, including in her right knee, which may have affected her gait and stability the day of the accident. I am also of the view that this condition is something that I must bear in mind in my assessment of damages.

(c) Post -incident Medical Condition

[87] On January 31, 2003, four days after the fall at Costco, Dr. Wylie, Mrs. Goody's family doctor, noted that Mrs. Goody had "re-injury [to] both knees" and an injury to the "right trapezius". Later on in February and March 2003, Dr. Wylie noted that "the knees are not better".

[88] On February 7, 2003 she was referred by Dr. Wylie for a physiotherapy assessment. The assessment conducted on February 10, 2003 revealed injury to both knees and both patella. It was then noted that she had problems

driving, sitting and sleeping. In the pain summary she expressed a mid-range of pain from pain as bad as it can be to no pain. She then expressed that her primary goal was to be pain-free and to resume her daily activities.

[89] In May 2003 Dr. Bull saw her again regarding her knees. Mrs. Goody was concerned about the pain she now suffered in both knees. Dr. Bull testified to the third degree chondromalacia in both knees. In his medical report of January 14, 2005, Dr. Bull wrote:

Basically she has post traumatic soft tissue problems manifest by a mild synovitis in the right knee and bilateral third degree chondromalacia which is undoubtedly provoked to a certain extent by the slip and fall, although she must have had some prior to the slip and fall accident.

[90] According to *Stedman's Medical Dictionary*, chondromalacia is defined as the "softening of any cartilage". Dr. Tile, the orthopaedic expert called on behalf of the Defence, expressed the condition as "some roughening at the back surface of the patella".

[91] It was identified that Mrs. Goody suffers from "chondromalacia". Dr. Bull in his evidence referred to the text, *Orthopaedics – Principles and Their Application*, for a definition. At p. 754, stage 2 chondromalacia is defined as a "gradual increase in disintegration". Stage 3 develops "with repeated traumata".

[92] Dr. Bull referred to Dr. Harrington's report dated October 7, 2003 and agreed with him. Dr. Harrington described Mrs. Goody's prognosis as "being guarded". Dr. Harrington concluded:

[U]nder the best of circumstances the outcome from knee arthroscopy for chondromalacia is 50/50. In general, I try to maximize the benefits from physiotherapy, bracing, anti-inflammatories or icing as well as activity modification. Clearly she has tried these things and therefore surgery remains the last hope, although limited. In my opinion, she is probable going to continue to have problems in her knees in spite of surgery.

[93] In his testimony at the trial Dr. Bull was well-prepared and convinced me he was knowledgeable on the construct of the knee and trauma to it. I find his evidence trustworthy and reliable. Dr. Bull testified and concluded that as a result of the fall Mrs. Goody must have suffered trauma to both knees. He testified to her having tenderness in both knees with the left knee now being the worst. He testified that she lacked the mobility and strength she had prior to the accident although she was getting some aid from the physiotherapy. At the same time, Dr. Bull acknowledged that Mrs. Goody "must have had some [chondromalacia] prior to the slip and fall accident".

[94] Beyond the knees Mrs. Goody complains of low back and hip pain. She said these came on after the accident. While I find she suffered this pain before the fall, the fall aggravated it. Dr. Bull in his report says that this has caused her altered gait. In the end, I find she was left with a stiff back which makes it

difficult for her to work comfortably without making adjustments for her discomfort.

[95] In October 2003 Mrs. Goody was again referred to Dr. Paitich. The medical legal reports that were made exhibits in these proceedings (by Dr. Bull, Dr. Harrington and Dr. Paitich) all seem to identify pathology in the patello-femoral compartment in each knee. Drs. Paitich and Harrington identified cartilage damage under the surface of the patellae.

[96] Dr. Tile, the orthopaedic surgeon, called on behalf of the Defence, like Dr. Bull, he is highly qualified in the field of orthopaedic surgery. He testified as to Mrs. Goody's knee injury. Like Dr. Bull, he had access to Mrs. Goody's medical history and was able to review it. He was also able to physically examine Mrs. Goody.

[97] Dr. Tile was of the opinion that Mrs. Goody had a light stiffness in the flexion of the right knee. The left knee was generally within the normal limits other than showing some tenderness to deep palpation over the patella. This was also true in the right knee. With respect to the severity of Mrs. Goody's present knee condition he said, "she fell directly on the patella and that may cause some involvement of the articular cartilage". He goes on to say, "there is no investigation to date on the file that shows precisely what that is".

[98] What I find from the evidence of Dr. Tile and from his report is that the fall at Costco could have caused Mrs. Goody's disability. In his report he concludes, "Whether that disability is clearly from the injury in the knee itself or whether other factors are involved is not precisely clear at this time." He then goes on to say, "a direct fall onto the patella some four years ago could be the complete cause of the physical restrictions which she now complains of".

[99] In the end I prefer the assessment and conclusion of Dr. Bull that the Costco incident was in fact a major contributing factor to the chondromalacia Mrs. Goody now suffers with all of its other manifestations to her physical well-being.

[100] According to Mrs. Goody her problems include constant pain while sitting so that she is required to take frequent breaks. She has difficulty in negotiating stairs. The pain wears down her level of energy. Mrs. Goody testified that her emotional state has been affected as she sometimes cries by herself. She cannot lie on her back in bed but only on her side. At night, she frequently is awoken by the pain which is relieved by movement.

(d) Quantum of Damages

[101] It is the position of the Plaintiff that her fall contributed to her present state of disability for which she claims general (non-pecuniary) damages. It is her position that the damages be assessed at \$85,000.00 to \$95,000.00. Acknowledging the pre-existing knee (ACL) injury, the Plaintiff proposes a 15% reduction and submits that \$76,400.00 is the appropriate award.

[102] In the end, the question for me to assess is to what extent the fall in Costco contributed materially to Mrs. Goody's present disability.

[103] Mrs. Goody admitted that some time before the fall in Costco she struck her left knee on a trailer hitch. Then approximately a month before the fall at Costco, Mrs. Goody banged her knee and sustained "a grimacing blow", as it was referred to at trial. The injury was significant enough that Mrs. Goody brought it to the attention of her chiropractor.

[104] This previous injury also led Dr. Wylie to refer her for an x-ray, prescribe medication and refer her for physiotherapy.

[105] Mrs. Goody's medical records prior to this incident refer to low back pain. There were also other reported injuries. On November 11, 2001 she reported slipping to her knees and on December 16, 2001 she reported falling

on her right knee. In early 1992, Mrs. Goody had major reconstructive surgery to her right knee.

[106] Dr. Bull's evidence, which I accept, is that Mrs. Goody suffers from second degree chondromalacia in both knees. Bilateral x-rays were taken on January 18, 2003. In his evidence Dr. Tile was of the view that the condition of Mrs. Goody's right knee was consistent with the reconstructive surgery she had in the 1990s. The day of the accident Mrs. Goody had her right knee x-rayed (Volume 1, Tab 13, p. 174). Dr. Tile testified that this second x-ray was consistent and revealed that the condition of that knee was the same before and after the accident. A third x-ray was taken on November 13, 2003. Dr. Tile's evidence was that Mrs. Goody's knee was in the same condition as before the accident.

[107] A 2007 MRI was conducted given Mrs. Goody's symptoms. That MRI shed no significant light upon Mrs. Goody's symptoms. Dr. Bull testified that an MRI was not useful and that a "skyline view" would be more relevant. A skyline view was, however, taken some five years before the trial in January and November 2003 and it disclosed no objective findings.

[108] Dr. Hugh Cameron, an orthopaedic surgeon retained by the Plaintiffs, did not give *viva voce* evidence at the trial. His report of January 29,

2008 and diagnosis are based on what Mrs. Goody told him. Also filed in evidence was a report of Dr. Michael Pinto, a rheumatologist, dated August 23, 2005. In that report Dr. Pinto opines Mrs. Goody's symptoms are compatible with "bilateral knee patella femoral osteoarthritis". He then goes on to say, "this may be consequential to her slip and fall accident although more likely these are degenerative changes".

[109] Counsel for Costco argues that Mrs. Goody fits the "crumbling skull" principle. It is argued that given her pre-existing condition Mrs. Goody should not be put in a better position simply because of the accident. I agree. See *Wood v Cobourg District General Hospital*, (1999), 125 O.A.C. 370, O.J. No. 3889. However, given my finding of liability, Mrs. Goody should be compensated for any damages related to it but not for any conditions which the Plaintiff would have experienced anyway. See *Hartwick v Simser*, [2004] O.J. No. 4315 (S.C.).

[110] It is the position of the Defendant that Mrs. Goody's condition of which she now complains, pre-existed the fall and should be taken into account. As said earlier, I agree and propose to do so.

[111] Taking into account the pre-existing bilateral knee problems, the Defence submits that the proper assessment of damages for pain and suffering

and for loss of amenities and enjoyment of life, past, present and future, in full and reasonable measure is \$20,000.00 to \$30,000.00. In support of its position, I was referred by the Defence to a number of decisions of this court. These include *Newall v. Flora* (2000), 26 C.C.L.I. (4th) 136 (Ont. S.C.), *Nuttall v. Thunder Bay (City)*, [2001] O.J. No. 545 (S.C.), *Lesniak v. Mississauga (City)*, [2002] O.J. No. 5125 (S.C.) and *Slater v. Toronto (City)*, [2004] O.J. No 4919 (S.C.).

[112] It is the position of the Defence that if Mrs. Goody's symptoms are as a result of the accident at Costco, they are minimal. After considering all the evidence I find that Mrs. Goody's fall at Costco did contribute to her present physical condition and the symptoms she exhibits. While I find the causal connection is not minimal, it is not a complete connection.

[113] In this case I am of the view that the assessment of damages for pain and suffering and loss of amenities and enjoyment of life, past, present and future in full and reasonable measure is \$50,000.00, bearing in mind a reduction by 25% for Mrs. Goody's pre-existing medical condition and earlier knee problems.

(e) Income Loss

[114] It is the position of Mrs. Goody that she has suffered past and prospective income loss as result of the injuries she sustained at Costco. She claims past income loss at \$125,714.00 and future income loss of \$159,713.00 for a total claim of \$285,427.00.

[115] On the date of the Costco incident Mrs. Goody was a retired property assessor. She derived a monthly pension income.

[116] The Defendant argues that there is no evidence to support a finding of any income loss, either past or future. It is the position of the Defendant that Mrs. Goody continued to work after the accident until December, having taken only two days off. According to the Defence she had no sales for three consecutive weeks in that position because she made no effort. Mrs. Goody testified that she was having problems with her knees and she could not do the calls without discomfort. She had to have her knees taped. The Defence referred me to the evidence of the physiotherapist whose records did not reflect that to be the case. Whether her knees where taped or not, it cannot be denied that she was in physiotherapy following the fall and at the time she said could not do the sales job, which required a lot of walking.

[117] It is also the position of the Defence that I must bear in mind her medical condition and circumstance before the fall as I look at the claims for

income loss. I agree that her medical history and condition had and have an impact on her employment and ability to work both before and after the incident in Costco.

[118] Mrs. Goody did not deny her medical history prior to when she suffered the fall. Both Dr. Bull and Dr. Tile, the Plaintiff and the Defence experts, agreed that a person's medical history is relevant to the diagnosis and assessment of the person.

[119] I find that both Dr. Tile and Dr. Bull agree that the injury Mrs. Goody sustained as a result of the fall contribute to her present circumstance. They disagree on the degree. In my assessment of income loss I bear in mind Mrs. Goody's medical condition and circumstance at the time of the fall.

[120] Following her retirement as a property assessor in 2002 Mrs. Goody's evidence was that like her husband, she wanted to continue working to ensure that they had the financial ability to provide their two children with post-secondary education. At trial she testified that she and her husband have a son who has not attended any post-secondary education and a daughter who at the age of 23 was not attending or enrolled in a post-secondary school. While this is relevant, I accept Mrs. Goody's evidence that both she and her husband

wanted to supplement their pension incomes. In effect, I find that they wanted to be at the same economic level they were in before their retirement.

[121] In his testimony Mr. Goody said he secured a job before he retired. When she retired Mrs. Goody did not have a position of employment even though she planned retirement a year and a half before choosing to retire. She worked for one month following retirement at Royteck Production. She remained without employment for some time thereafter. Just before the accident occurred, Mrs. Goody secured a sales job with Phone Directories selling advertising in the Yellow Pages. She had just completed her first week on the job when she fell.

[122] On Mrs. Goody's behalf it is argued I am required to assess the Plaintiff's future earning capacity and calculate what she would have earned, but for the accident. In doing that the Defence argues I must bear in mind what steps she took following retirement and then after the accident in Costco. Specifically, the Defendant argues I should bear in mind: Mrs. Goody did not work for one before year before the accident, aside from her brief period at Royteck before starting with Phone Directories.

[123] I find that following the accident, Mrs. Goody did return to work with Phone Directories. It is Mrs. Goody's evidence that she did so with great

difficulty and suffering significant discomfort. She received some training and within three months her classification changed from “independent contractor” to that of “employee”. The position had a salary and a commission component to it. The testimony of Ms. Murdoch of Human Resources for Phone Directories was that Mrs. Goody was required to maintain a monthly quota which she did not meet. Ms. Murdoch testified that after three consecutive weeks of no sales, Mrs. Goody had breached the terms of the company for an “employee” and was terminated. It was of interest to me that when terminated, Mrs. Goody did not ask for accommodation or consideration as a result of her physical problems. I find that Mrs. Goody accepted her termination. From the evidence of Ms. Murdoch and Mrs. Goody I cannot help but conclude that apart from her physical condition, Mrs. Goody’s heart was not entirely in this job.

[124] Dr. Eugene Jurkowitz testified on behalf of the Plaintiff with respect to Mrs. Goody’s income loss. He based his calculations on the assumption that Mrs. Goody would work at least to age 65. He testified that in Canada, statistically, the average retirement age for university-educated women was 62. Mrs. Goody fits that category. During the proceeding Dr. Jurkowitz acknowledged that Mrs. Goody was retired. He also testified that given her age, entry into the work force would be difficult after retirement.

[125] In report, Dr. Jurkowitz estimated that as of June 1, 2008 Ms. Goody's past lost gross income was \$255,874.00. The present day value of her future loss of income was in the range of \$321,281.00 to \$ 435,048.00 working to age 65.

[126] In his evidence-in-chief and in his report Dr. Jurkowitz testified that but for the accident Mrs. Goody's income would likely have totalled \$58,500 with Phone Directories. He also tracked an increase for inflation and productivity of 3.32%. I had difficulty with his evidence and calculation, particularly bearing in mind my finding on the reality of Mrs. Goody's post-retirement employment history. I find she did not have a proven track record at Phone Directories to support Dr. Jurkowitz's assumptions.

[127] To her credit, Mrs. Goody did make an effort to mitigate her future income loss after the accident by working for Phone Directories. I am not convinced she did so in earnest, or thereafter conducted what Dr. Jurkowitz called "an extensive job search". In the end, it was by chance that she started working for Tiffany's Creative Windows Designs in Newmarket in September 2005. There she earned a weekly salary of approximately \$325.00 a week (\$16,900.00 annually).

[128] Her employer at Tiffany's, Ms. Bensette, testified at trial that Mrs. Goody was accommodated with flexible hours and work. Unfortunately this job ended when the business closed in January 2007. Ms. Bensette's evidence was that Mrs. Goody was a good employee and was able to do her tasks as assigned to her. This would suggest to me that despite her condition she was able to work as a sales consultant and managing the store.

[129] It was Mrs. Goody's evidence that since January 2007 she has made efforts to seek further employment, but has not been successful in her search. In the end, it was Dr. Jurkowitz's conclusion that as a result of the accident and her impairment, Mrs. Goody is not employable. It was his conclusion that if she was again employed it would have to be with a benevolent employer like Tiffany's.

[130] Mrs. Goody did not have income from employment in 2008. She testified she has sent off resumes and had two interviews but was not hired because she did not speak Cantonese or Mandarin, or was unwilling to accept the requirements of the prospective employer. In the end, I could not but conclude that she has little interest in securing employment at this point in time. While I accept her physical circumstances, I find she can work despite her physical problems. She has proven her ability to do so.

[131] Dr. Jurkowitz in his report projected that Mrs. Goody's future income loss but for the accident was \$65,935.00 a year until she turns 65 years old. I found his projection unrealistic and unreliable. In his assessment of Mrs. Goody's earning potential, Dr. Jurkowitz did not have the complete facts as to her candidature for employment. I was not impressed with his calculations. As a result I find that his conclusions are not helpful to me.

[132] Since leaving Tiffany's, Ms. Bensette, who has now become Mrs. Goody's friend, testified that she has been active in the community. I; therefore, find that Mrs. Goody has the potential to be employed and to earn at least what she was earning at Tiffany's.

[133] Mr. Daniel Edwards was called on behalf of the Defendant to respond to the report of Dr. Jurkowitz. I prefer Mr. Edwards' approach and calculations which I found to be more realistic and more reliable for my purposes.

[134] I agree with the conclusion of Mr. Edwards that Mrs. Goody would not have succeeded as a sales person at Phone Directories regardless of the accident. For whatever reason it did not work out for her or her employer. I do relate part of Mrs. Goody's difficulties at the Phone Directories job to her physical condition.

[135] As Mr. Edwards suggested, I find that I must look at the big picture, including Mrs. Goody's difficulties as a result of the Costco accident. Mrs. Goody has a pension income. In 2003 it was in the range of \$33,000.00 a year with annual cost of living increments. In 2008 the pension income increased to \$34,900.00 a year. In his calculation Mr. Edwards assumed that Mrs. Goody would have attempted to supplement her retirement pension with sufficient employment to bring her to the level of income she had as a public property assessor were it not for the accident. I find this assumption is what in reality would have happened had it not been for the accident.

[136] In calculating past and future income loss the first task is to estimate the income the Plaintiff would have earned had she not been injured. See *Kenneth D. Cooper-Stephenson, Personal Injury Damages in Canada*, 2nd ed. (Scarborough: Thomson Canada Limited, 1996), at p. 221. The simple probability standard was set out by the Court of Appeal in *Graham v. Rourke* (1990), 74 D.L.R. (4th) 1 (Ont. C.A.), where Doherty J.A. stated that a trial judge is "called upon to conduct a somewhat speculative exercise".

[137] McLachlin J. (as she then was) in *Milina v. Bartsch* (1985), 49 B.C.L.R. (2d) 33 (S.C.), at p. 78 stated that loss of future earning capacity is determined "by comparing what the plaintiff would have earned had he not been

injured with what he will earn in his injured state". Both lines of inquiry involve a hypothetical analysis.

[138] Following that reasoning, in the calculation of past income loss, I rely on Mr. Edwards' projected income for Mrs. Goody had the accident not occurred and as set out in Appendix A of his report dated April 3, 2008. Mr. Edwards' position was that Mrs. Goody was not successful as a commission sales person. Given the evidence of Ms. Murdoch and Mrs. Goody's performance at Phone Directories, I agree.

[139] I find that from 2004 onwards Mrs. Goody had and would have obtained employment so that together with her pension and employment income, she could maintain her level of income prior to retirement. I therefore accepted Mr. Edwards' projection as in Appendix A.

(f) Past Income Loss

[140] In my calculation of past income loss, I reduced those projections by what Mrs. Goody actually did earn in those years. In the actual income earned I rely on Mr. Edwards' figures as set out in Appendix B of his report. For the year 2008, given my findings that Mrs. Goody was not earnest in her search, I rely on a projection using her income from Tiffany's in the past year as to what she

could do. I find that at the very least, she should have been able to secure income at that level. I then topped it up to the projected income.

[141] Using Mr. Edwards' projections and bearing in mind Mrs. Goody's pension income, I come to a slightly different conclusion than did Mr. Edwards. My calculations therefore of past income loss are as follows:

	PROJECTED INCOME	ACTUAL INCOME	LOSS OF INCOME
2003	\$34,977	\$29,439	\$5,538
2004	\$25,253	\$21,402	\$3,851
2005	\$25,636	\$14,420	\$11,216
2006	\$25,160	\$18,498	\$6,662
2007	\$26,684	\$14,950	\$11,734
2008	\$27,271	\$0	\$11,735
	Total past income loss:		\$50,736.00

(g) Future Loss of Income

[142] I turn then to future loss of income. Mrs. Goody has demonstrated the ability to work since the date of the accident. She was good as a sales consultant and managed the Tiffany's store. Although the level of income that she is able to earn in the future is not clear, I find that she should be able to secure a similar job as she had at Tiffany's where she was able to earn \$15,000 in the last year. I find her failure to return to work is not in the circumstances reasonable. I rely on my finding for 2008 as a projection into the future. As a result I find that her future income loss should be calculated at \$12,000 a year from 2009 to Mrs. Goody attaining the age of 65.

[143] I am, therefore, of the view that for future loss of income to April 2015, when Mrs. Goody turns 65, the calculation should be as follows: $\$12,000 \times 6 \frac{1}{4}$ years = \$75,000.00. As conceded by the Plaintiffs' own expert, I would reduce this amount by 10% as there is uncertainty as to whether Mrs. Goody would in fact work until the age of 65. I also bear in mind what the Plaintiffs' expert said the statistics bear out. With that reduction, I therefore calculate the future loss of income at \$67,500.00.

(h) Family Law Claim

[144] Mr. Goody is advancing a claim under the *Family Law Act*. In the Statement of Claim his claim is for \$100,000.00.

[145] Mr. Goody claims losses for the loss of care, guidance and companionship arising from the accident. Both parties testified that their conjugal life has suffered as a result of the accident. He also claims for the loss of housekeeping and other services provided by Mrs. Goody which he has now assumed.

[146] Mr. Goody has accompanied and traveled with his wife to treatments and medical appointments. He also testified to the change in their lifestyle since the accident. I therefore find that he has suffered a loss as a result of his wife's injuries.

[147] The Defence takes the position the loss suffered by Mr. Goody should be assessed at approximately \$6,000.00. I was referred to the awards in the following decision: *Lesniak*, where the award was \$6000, *George v. Covent Garden Market Corp.*, [2007] O.J. No. 2903 (S.C.), where the award was \$5,000 and *Newell*, where the award was \$7,500.

[148] In the circumstances I award Mr. Goody \$7,500 for his loss.

Conclusion

[149] In the summary, I order that the Defendant pay to the Plaintiffs the following:

General Damages	\$ 50,000.00
Loss of Past Income	\$ 50,736.00
Future Loss of Income	\$ 67,500.00
<i>Family Law Act</i>	\$ 7,500.00

These amounts are subject to pre-judgment interest pursuant to the *Courts of Justice Act*.

[150] If the parties cannot agree on costs they may make submissions in writing on the issue on or before September 30, 2009.

Kruzick J.

Released: July 17, 2009

COURT FILE NO.: 780-04
DATE: 20090717

ONTARIO
SUPERIOR COURT OF JUSTICE

B E T W E E N:

Diane Goody and Richard Goody

Plaintiffs

- and -

Costco Wholesale Corporation Limited

Defendants

REASONS FOR JUDGMENT

Kruzick J.

Released: July 17, 2009